

FIRST INFORMATION REPORT**(Under Section 154 Cr.P.C.)**

1. **District:** Kolkata **PS:** EO-IV Kolkata
Year: 2021
FIR No: RC2252021E0011 **Date:** 27/10/2021

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120 B	
IPC	406	
IPC	420	

3. **Suspected offences:** Cheating and Criminal breach of trust(a) **Occurrence of offence:****Day:****Time Period:****From Date:****To Date:**(b) **Information Received at PS:****Date:**(c) **General Diary Reference:****Entry No.:**

12

Date:

27/10/2021

Time:

15:49:19

4. **Type of Information:** Written5. **Place of Occurrence:**(a) **Direction & distance from PS:**

570 KMs in North from CBI, EO-IV, Kolkata

Beat No.:(b) **Address:****Plot No.:**Ananda Villa, Haren
Mukherjee Road,**Area:**

Hakim para, PO+PS Siliguri

City:

Darjeeling

Pin:

734001

State:

West Bengal

District:

Darjeeling

(c) **In case, outside the limit of this Police Station, then****Name of PS:****District:**6. **Complainant / Informant:****Complainant 1**(a) **Name:** Mr. Kajal Dutta(b) **Father's/Husband's Name:** Kanti Dutta(c) **Date/Year of Birth:**(d) **Nationality:** INDIAN(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:**(g) **Address:**

Plot No	Area	City	State	District	Pin
Jyotinar, Ward No. 41,	P.S.Bhaktinagar	Jalpaiguri	West Bengal	Jalpaiguri	

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1**Name:** Mr.Kalyan Sarkar(01)**Address:****Accused 2****Name:** Mr.Sudhamoy Sarkar(02)**Address:****Accused 3****Name:** Mrs.Baby Sarkar(03), **Father/Husband name:** Kalyan Sarkar**Address:****8. Reasons for delay in reporting by the complainant/informant:**

No Delay.

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

The Hon'ble Supreme Court of India vide order dated 09.05.2014, passed in connection with Writ Petition(C) 401 of 2013 (in the matter of Subrato Chattoraj Vs. Union of India & Others) and other similar writ petitions, directed the Central Bureau of Investigation to take over cases registered against different chit fund companies, at different police stations in the State of West Bengal and Odisha. In Para 34 A. of the said order, the Hon'ble Supreme Court of India directed to transfer the cases of West Bengal by observing that - "(1) All cases registered in different police stations of the State against Saradha Group of Companies including Crime No. 102 registered in the Bidhannagar Police Station, Kolkata (North) on 6 May, 2013 for offences punishable under sections 406,409,420 and 120B of the IPC, (2) All cases in which the investigation is yet to be completed registered against any other company upto the date of this order.(3) The CBI shall be free to conduct further investigation in terms of Section 173(8) of the Cr.P.C. in relation to any case where a charge-sheet has already been presented before the jurisdictional court against the companies involved in any chit-fund scam."

In compliance to Para 34 A (2) of the said order of the Hon'ble Supreme Court, this case is registered u/s 406/420/120B of IPC against (1.) Kalyan Sarkar, (2.) Sudhamoy Sarkar and (3.) Baby Sarkar W/o Kalyan Sarkar, out of which Sl. No. 01 is CMD and Sl. No. 02 to 03 are Directors of "Om Shivao Infracons Limited", treating Siliguri P.S Case No. 632/2013 dated 23.06.2013 as original FIR of this case. Copies of the original FIR of the above case, complaint filed by the complainant before Siliguri Police Station, and order dated 09/05/2014 passed by the Hon'ble Supreme Court of India are enclosed as part and parcel of this FIR.

The allegation in brief as per the complaint filed by the complainant, Sh. Kajal Dutta S/o Kanti Dutta, R/o Jyotinagar, Ward No. 41, PS- Bhaktinagar, Dist. Jalpaiguri, West Bengal which is enclosed with Siliguri P.S Case No. 632/2013 dated 23.06.2013 is that the complainant had invested some money with M/s. Om Shivao Infracons Limited, having its Registered Office situated at Ananda Villa, Haren Mukherjee Road, Hakimpura, Siliguri, Dist.- Darjeeling, West Bengal-734001 with an assurance of getting high returns in a short span of time. Later, when the complainant and other investors approached the office of the company, they found it closed. The complainant and other investors also approached accused Directors and the CMD of the company but they did not find them. Thus, the above said accused Directors and the CMD of the company cheated them and misappropriated their invested amount.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

Rohit Jaiswal

Rank:

SUB-INSPECTOR (EO-IV Kolkata)

No:

158640

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:**Document name**

Writ Petition No. 401 of 2013

Siliguri PS FIR No. 632/13

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.**R.O.A.C.**

14. **Signature/Thumb Impression of the complainant/informant**

Prasenjit Roy 27.10.21
**Signature of Officer
in-charge Police
Station**

Name: Prasenjit Roy**Rank:** SUPDT. OF POLICE (EO-IV Kolkata)

**PRASENJI,
SP. CBI: EO-IV
KOLKATA**

15. **Date and time of dispatch to the Court:**